

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
In the Matter of the Complaint of:

JOHN LE TRAN,  
Plaintiff,

Index No. \_\_\_\_\_

-against

**SUMMONS  
AND COMPLAINT**

THE CITY OF NEW YORK; NEW YORK  
CITY POLICE DEPARTMENT ("NYPD")  
OFFICER "JOHN" RIQUELME, SHIELD  
NUMBER 15736; NYPD OFFICER "JOHN"  
BATSYK, SHIELD NUMBER 34676; AND  
NYPD OFFICER JOHN DOE,  
Defendants.

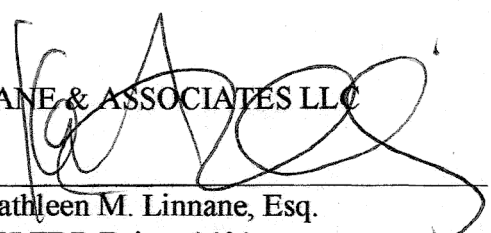
-----X  
To the above-named Defendants:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the Plaintiff herein and serve a copy of your answer on the Plaintiff's attorney at the address indicated below within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in this complaint.

New York County New York County is the appropriate venue under CPLR §§ 503(a). The act complained of herein occurred in New York State, in the City of New York and the borough of Manhattan, and Plaintiff John Le Tran has at all times relevant to this action resided at 362 West 127<sup>th</sup> Street, Apartment 5A, New York, New York, 10027.

Dated: New York, New York  
March 8, 2019

LINNANE & ASSOCIATES LLC

By: 

Kathleen M. Linnane, Esq.

477 FDR Drive, 1401

New York, NY 10002

(917) 952-3154

Attorney for the Plaintiff John Le Tran

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
In the Matter of the Complaint of:

JOHN LE TRAN,  
Plaintiff,

Index No. \_\_\_\_\_

-against

**COMPLAINT**

THE CITY OF NEW YORK; NEW YORK  
CITY POLICE DEPARTMENT ("NYPD")  
OFFICER "JOHN" RIQUELME, SHIELD  
NUMBER 15736; NYPD OFFICER "JOHN"  
BATSYK, SHIELD NUMBER 34676; AND  
NYPD OFFICER JOHN DOE,  
Defendants.

-----X  
  
Plaintiff John Le Tran, of 362 West 127<sup>th</sup> Street, Apartment 5A, New York, New  
York, 10027, by and through his attorneys, Linnane & Associates LLC, for his Complaint alleges  
as follows:

**PRELIMINARY STATEMENT**

1. On December 26, 2018, employees of the New York City Police  
Department ("NYPD") issued Transit Authority Bureau Violation Number 115602228 to  
Plaintiff John Le Tran for alleged turnstile jumping. This baseless violation was issued absent  
probable cause and as a result of racially-based policing practices in clear violation of Mr. Tran's  
civil rights as a member of a protected class.

2. "Turnstile jumping," or Theft of Services under New York Penal Law  
§ 165.15(3), is the intention of a person to obtain subway service without payment of the lawful

charge by jumping over a subway turnstile or using other modes to avoid payment of the fare required to enter the subway system.

3. Turnstile jumping is one small part of the larger “broken windows” approach to policing. Such an approach to law enforcement was implemented and enforced in New York City starting in the 1990s by Police Commissioner William Bratton and Mayor Rudolph Giuliani.

4. It is well known that the broken windows approach to policing is ineffective and tends to unlawfully and disproportionately adversely affect members of minority groups.

5. Plaintiff states he has observed the NYPD Officers named herein at the 125<sup>th</sup> Street A/B/C/D subway station on numerous previous occasions arguing with other persons of color about subway fares. As a member of a minority group, Mr. Tran is often apprehensive about entering the 125<sup>th</sup> Street subway station and instead opts to use alternate and sometimes costly modes of transportation rather than potentially encounter the NYPD.

6. On June 30, 2017, Manhattan District Attorney Cyrus R. Vance Jr. announced the enactment of justice reform initiatives to end the criminal prosecution of low-level offenders in Manhattan.<sup>1</sup> One such policy reform would be the halting of criminal prosecution for a majority of turnstile jumpers. Turnstile jumping is a misdemeanor offense in New York.

7. On February 1, 2018, a policy was enacted whereby absent a public safety risk, alleged turnstile jumpers in Manhattan are no longer to be arrested and charged with a misdemeanor. Rather, alleged offenders are issued a Transit Adjudication Bureau Notice of

---

<sup>1</sup> District Attorney Vance to End Criminal Prosecution of Approximately 20,000 Low-Level, Non-Violent Misdemeanors per Year, (2017) <https://www.manhattanda.org/district-attorney-vance-end-criminal-prosecution-approximately-20000-low-level-non-vio/>

Violation and Hearing. Alleged offenders are required to pay a \$100 fine or attend a hearing at the Transit Adjudication Bureau ("TAB") to fight the summons. There is and has been no similar policy change in any of New York City's four other boroughs.

8. New York Administrative Code §14-172 was enacted on January 1, 2018 in response to data and numerous reports that the "NYPD" was targeting minority protected classes in their enforcement of Penal Law § 165.15(3). This law requires that the NYPD post periodic reports on the numbers of summons issued and arrests made for subway fare evasion at each of the subway stations in New York City to ensure that allegations of turnstile jumping are neither racially motivated nor targeted at low-income New York City neighborhoods. The first such report was ordered to have been issued on January 30, 2018.

9. On September 19, 2018, City Council Members Rory Lancman and David Jones, along with the Community Service Society of New York, filed suit against the NYPD alleging failure to comply with New York Administrative Code § 14-172.

10. On October 3, the NYPD released a limited set of data about summons and arrests. The data sets are incomplete, only providing information about a limited number of subway stations.

11. Data sets made available by the NYPD unequivocally indicate that persons of color continue to represent more than ninety percent of fare evasion arrests for which race was determined.

12. There have been numerous complaints filed by NYPD officers against the NYPD alleging racially discriminatory policing requirements including the continuing use of a racially-based quota system that has been illegal since 2010.

13. Although the NYPD and the City have on numerous occasions denied the existence of a quota system and race-based policing for turnstile jumping, the institution of mandatory no-quota training by all NYPD officers and the enactment of New York Administrative Code § 14-172 in early 2018 are evidence of the persistence of quota-driven and race-based policing by the NYPD.

14. It is time that the NYPD be held accountable for violating the rights of persons granted to them by the United States Constitution, by New York state law, and by New York City law.

15. Mr. Tran seeks damages pursuant to 42 U.S.C. § 983 for Defendants' violations of his rights under the United States Constitution and under New York State and City law. Mr. Tran also seeks changes to the New York Police Department's policies to ensure that members of the police force will deliberately cease targeting persons of color and other protected classes in the enforcement of various civil and criminal statutes. Racially-based policing of subway turnstiles is illegal, and targeting persons of color and low-income communities who are either unable to pay the considerable fine or take a full day away from work to adjudicate a baseless accusation has significant consequences on the community. Such racially-targeted practices and the effects thereof have absolutely no place in New York City.

#### **THE PARTIES**

16. Plaintiff John Le Tran is a citizen of the United States and at all times relevant to this action, Mr. Tran resided at 362 West 127<sup>th</sup> Street, Apartment 5A, New York, New York, 10027, in the borough of Manhattan.

17. Defendant City of New York ("the City") is a municipality organized and

existing under the laws of the State of New York. At all relevant times, the City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters, including the appointment, training, supervision, and conduct of all NYPD personnel. The City is responsible for enforcing the rules of the NYPD and ensuring that NYPD personnel obey the laws of the United States and the State of New York.

18. Defendants "John" Riquelme, "John" Batsyk, and John Doe were, at all times relevant to this action, police officers employed by the City. In this role, Defendant Officers were duly appointed and acting officers, servants, employees and/or agents of the City of New York. At all relevant times, Defendant Officers were acting in the scope of their employment and under color of state law.

#### **JURISDICTION AND VENUE**

19. This action arises under the Fourth and Fourteenth Amendment to the United States Constitution, and 42 U.S.C. §§ 1983 and 1988, and New York state law.

20. New York County is the appropriate venue under CPLR § 503(a). The act complained of herein occurred in New York State, in the City of New York, and the borough of Manhattan.

#### **JURY DEMAND**

21. Plaintiff demands a trial by jury.

#### **STATEMENT OF FACTS**

22. Plaintiff John Le Tran is a thirty-two-year-old Asian man.

23. On December 26, 2018, Plaintiff was travelling to a sports practice session in New York City's Central Park.

24. At or approximately 11:35 a.m., Plaintiff entered the 125<sup>th</sup> Street A/B/C/D New York City Subway station using the 127<sup>th</sup> Street West entrance.

25. At 11:36 a.m., Plaintiff swiped his Unlimited New York City Metropolitan Transportation Authority Metro Card number 2928632291 in a turnstile inside said subway station. Plaintiff passed through the turnstile. Plaintiff saw plain-clothes Officer John Doe observing the subway turnstiles. Plaintiff looked at, and made direct eye contact with, Officer Doe. Plaintiff descended the stairway to the subway platform.

26. Plaintiff was using a videogame on his mobile phone and was looking down at his mobile phone as he walked on the subway platform.

27. At or approximately 11:38 a.m., Officers Riquelme and Batsyk appeared on the subway platform in pursuit of Plaintiff. Officer Riquelme yelled, "Hey!" and ordered Plaintiff to "stop."

28. Plaintiff looked over his shoulder and saw the two officers behind him. Plaintiff returned to his videogame and continued to walk on the subway platform.

29. Officers Riquelme and Batsyk again yelled for Plaintiff to "stop."

30. Plaintiff realized the Officers were yelling to him and stopped walking.

31. Officers Riquelme and Batsyk surrounded Plaintiff and demanded that Plaintiff explain why he had jumped the turnstile. Plaintiff stated that he did not jump the turnstile.

32. Officer Riquelme again demanded Plaintiff explain why he had jumped the turnstile and stated he had observed Plaintiff jump the turnstile.

33. Officer Riquelme asked Plaintiff where he lived. Plaintiff, who lives nearby the subway station, pointed toward the 127<sup>th</sup> Street entrance whence he came. Officer

Riquelme laughed at Plaintiff and mocked, "Oh, you live upstairs?" Plaintiff then clarified that he lived next door.

34. Officer Riquelme demanded that Plaintiff supply identification. Plaintiff complied and gave Officer Riquelme his New York State Driver's License. Officer Riquelme began filling out a Transit Adjudication Bureau Violation form.

35. Plaintiff repeated to Officers Riquelme and Batsyk that he did not jump the turnstile. Plaintiff showed Officers Riquelme and Batsyk his Metro Card and stated that it was a monthly Metro Card. Plaintiff offered to swipe the card again to show it was, at the time, inactive because it had been recently swiped. Plaintiff also offered to go to the kiosk where he could swipe the Metro Card to show it had just been used. Officers Riquelme and Batsyk refused to allow Plaintiff to show them his card was inactive.

36. Officer Batsyk stated that he saw Plaintiff jump the turnstile.

37. At 11:40 a.m. Plaintiff dialed 9-1-1. Plaintiff spoke with the 9-1-1 operator and explained he was being falsely accused of turnstile jumping and requested support by additional police. The 9-1-1 operator told Plaintiff he would take care of his request.

38. Officer Riquelme said to Plaintiff, "We are the police, so..." No additional police arrived in response to Plaintiff's call.

39. Plaintiff again denied jumping the turnstile, explaining that he had just come from a workout and that he would not be physically able to jump the turnstile.

40. Officer Doe arrived on the scene and stated that he saw Plaintiff jump the turnstile.

41. Plaintiff asked the Officers for their names and badge numbers. Using his mobile phone, Plaintiff took photographs of Officer Riquelme's badge and Officer Batsyk's badge. Officer John Doe Officer refused to identify himself to Plaintiff.

42. Plaintiff began taking a video recording of his interaction with the three Officers. The recording shows Plaintiff asking the Officers if an Officer had seen him jump the turnstile. Officer Riquelme can be seen and heard confirming, "Yes."

43. At 11:41 a.m., Officer Riquelme issued Notice of Violation number 115602228 to Plaintiff.

44. Plaintiff asked if the Officers were using a quota system. Officer Riquelme responded, "It's not a quota system." Officer Batsyk responded, "This isn't an interview," and turned to walk away, refusing to speak any more with the Plaintiff about what he was accused of having done.

45. Officers Riquelme, Batsyk, and Doe walked away from Plaintiff and ascended the steps from the subway platform.

46. Plaintiff ascended the steps and, using his mobile phone, photographed Officer Doe.

47. Officer Riquelme demanded Plaintiff "Step back," and resumed monitoring the station turnstiles.

48. Plaintiff returned to the platform and boarded the train, yet was suffering from extreme emotional distress and turned around to return home. Plaintiff was highly apprehensive about deboarding the subway at the 125<sup>th</sup> Street subway station and was fearful that he would again encounter the three NYPD Officers.

49. At 12:46 p.m., Plaintiff phoned the Metropolitan Transportation Authority (“MTA”) to verify the usage history of his Metro Card. Plaintiff was asked to call back on December 27, a time when the MTA could report on his previous day’s use.

50. On December 27 at 8:15 a.m., Plaintiff phoned the MTA as requested to verify the usage history of his Metro Card on December 26. Plaintiff confirmed with the MTA phone representative that there is confirmation of his Metro Card swipe at 11:36 the previous morning.

51. On December 27, Plaintiff attended an adjudication hearing at the New York City Transit Authority’s Transit Adjudication Bureau (“TAB”), 29 Gallatin Place, Third Floor, Brooklyn, New York, 11021.

52. After taking Plaintiff’s testimony, TAB’s Hearing Officer Bianchino, ID 1303, dismissed the violation, determining that the Plaintiff had paid the required subway fare and that his statement was by the “metrocard print out for the unlimited metrocard” obtained by TAB.

53. Plaintiff was given a Notice of Decision and Order which states that TAB was unable to find that the Plaintiff committed the violation.

#### **CAUSES OF ACTION**

54. Plaintiff repeats and realleges the above paragraphs as if the same were fully set forth at length herein.

#### **FIRST CAUSE OF ACTION 42 U.S.C. § 1983 – Fourth and Fourteenth Amendments Violation (Against All Defendants)**

55. Defendant Officers deprived Plaintiff of his constitutional rights in issuing a summons absent any probable cause. Defendant Officers could not possibly have had any

knowledge or facts to warrant a belief that Plaintiff jumped the turnstile because Plaintiff did not jump the turnstile.

56. At all relevant times, Defendant Officers were acting under color of state law in their individual and official capacities within the scope of their respective employments as police officers for the NYPD.

57. Defendant Officers acted beyond the scope of their authority and jurisdiction to willfully, knowingly, and intentionally deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments.

58. As a direct and proximate result of Defendant Officers' misconduct detailed above, Plaintiff sustained the damages hereinbefore alleged.

**SECOND CAUSE OF ACTION**  
**New York Civil Rights Law Violations**  
(Against All Defendants)

59. Defendants engaged in unlawful discrimination against Plaintiff because of his race in violation of NY CVR § 8.

60. Defendants issued a baseless summons to Plaintiff absent any probable cause in violation of NY CVR § 8.

61. Defendants consistently engage in persistent unlawful discrimination in policing tactics against persons based on their race in violation of New York Human Rights Law and N.Y.C. Admin. Code § 8-107(1).

62. As a result of Defendants' discrimination against Plaintiff on the basis of his race, Plaintiff is entitled to compensatory damages and to attorneys' fees and costs under N.Y.C. Admin. Code § 8-120(a).

**PRIOR APPLICATION**

63. Plaintiff filed a complaint alleging unlawful discriminatory practices with respect to the allegations described herein and made a request for the relief requested herein with the City of New York Commission on Human Rights on January 7, 2019. Plaintiff has received neither an answer from any of the Defendants named herein nor been granted relief of any kind.

64. Plaintiff filed a Notice of Claim with the New York City Comptroller on January 8, 2019. Plaintiff has not been granted relief of any kind.

**WHEREFORE**, Plaintiff respectfully requests judgment against Defendants as follows:

65. Compensatory damages against all Defendants in an amount to be determined at trial;

66. A declaration that the NYPD's customs of aggressive policing and of issuing summons to persons within protected classes including minority groups and persons of color in greater numbers than to white persons violates the United States Constitution and New York state and City law;

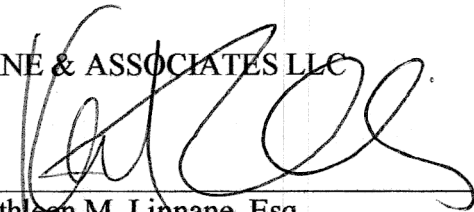
67. Injunctive relief against the City of New York, including but not limited to a demand that the NYPD comply fully with New York Administrative Code § 14-172 and release full, timely arrest and summon data for all stations in the New York City subway system, and issuance by New York City's City Council and law enforcement agencies of a consistent

cross-borough policy concerning both the issuance of summons and prosecution of offenses for alleged turnstile jumping.

- 68. Attorneys' fees and costs under 42 U.S.C. § 1988; and,
- 69. Such other and further relief as this Court may deem just and proper.

Dated: New York, New York  
March 8, 2019

LINNANE & ASSOCIATES LLC

By: 

Kathleen M. Linnane, Esq.

477 FDR Drive, 1401  
New York, NY 10002  
(917) 952-3154

Attorney for the Plaintiff John Le Tran

RICHARD M CHENG  
Notary Public, State of New York  
Reg. No. 01CH6130110  
Qualified in Kings County  
Commission Expires July 05, 2021

3/8/19

